

[*125] absolutely (e). * But in *Montagu v. Lord Inchiquin* (a), where there was a gift of family diamonds to Lucius Baron Inchiquin, and the testatrix added "and I direct the said diamonds to be delivered to Lord Inchiquin free of duty and I make the above request to Lord Inchiquin as head of the existing family, and so far as I lawfully can, I direct that the said diamonds shall be deemed heir-looms in the family of Inchiquin, and shall be held and enjoyed by the person for the time being bearing the title of Baron Inchiquin," V. C. Hall held that the gift did not lapse by the death of Lucius Baron Inchiquin in the lifetime of the testatrix, that the clause was not executory, but that the direction created an obligation or trust which would have been binding on Lucius Baron Inchiquin had he survived, and he also held that the disposition of chattels to follow a dignity is good where there is no rule against perpetuities transgressed. But a gift to trustees of the contents of a house "upon trust to select and set aside a collection of the best paintings, &c., for the Earl of E. and his successors *to be held and settled* as heir-looms and to go with the title," is clearly executory and gives only life interests to persons *in esse* at the death of the testator (b).]

Where freeholds and chattels real were devised to trustees in trust for the testator's son for life, with a direction that, if he married, the trustees should settle and secure the premises as a *jointure to the wife* for her life, and to the *issue* share and share alike; and the son died, having *married twice*, but having had issue by the first wife only, viz.: three daughters, the Court directed a settlement of the whole on the second wife for life by way of jointure, with remainder to the three daughters as to the freeholds as tenants in common in tail, with cross remainders between them, and as to the chattels real, as tenants in common absolutely (c).

[Where freeholds were settled by will in strict settlement

[(e) *Re Viscount Exmouth*, 23 Ch. D. 158; *Tollemache v. Earl of Coventry*, 2 Cl. & Fin. 611.]

[(b) *Re Johnston*, 26 Ch. D. 538.]

(c) *Mason v. Mason*, 5 I. R. Eq. 288.

[(a) *Montagu v. Lord Inchiquin*, 23 W. R. 592.]